AGREEMENT FOR SALE

This Agreement for Sale ("Agreement") executed on this **day of , 2023** at Bengaluru,

By and Between

1. **M/s Krishnapriya Reality LLP, (PAN**: **AAUFK4315Q**)
   a Limited Liability Partnership having its registered
   office at No. 100/1, Citi Centre,
   Opposite to Town Hall, J.C. Road,
   Bengaluru – 560 002,
   represented by its Designated Partner,
   Mr. Avnash Amarlal
   (Aadhar No. 6476 7740 8988).
   (Being represented by their GPA holder M/s.DNR Corporation Pvt Ltd, Represented by its Managing Director **Shri. Vipul Kumat, constituted under the GPA dated 25-04-2022 registered vide Document No. INR-4-00147/2022-23 of Book IV, stored in C.D. No. INRD1059 in the office of the Sub-Registrar, Shivajinagar (Indiranagar).**

2. **M/s. DNR Corporation Private Limited**,
   A Private Limited Company incorporated under
   The Companies Act, 1956 and
   Having its registered office at
   A-304, Queens Corner,
   Queens Road,
   Bengaluru – 560 001.
   PAN: **AACCD8007D**
   Represented by its Managing Director,
   Shri. Vipul Kumat
   Aadhar Card No. **5264 5965 2493**,

hereinafter collectively referred to as "Promoters" (which expression shall unless repugnant to the context or meaning thereof be deemed to mean and include all its partners, successors-in-office and permitted assigns) of the One Part.

AND

1. Mrs. Preeti Rani,
Wife of Mr. Manak Sahu,
Aged about 35 Years,
PAN: **BFOPR2566A**
Aadhar No. **9861 4388 1506**

2. Mr. Manak Sahu
Son of Mr. C.H. Sahu,
Aged about 36 Years,
PAN: FQDPS6934M
Aadhar No. 9236 2761 8536

Both are Residing at : Sreepadam Grand Apartment, Flat No. T3 4th Floor, B.Block, TC Palya Main Road Ramamurthy Nagar, Bangalore-560016.

Hereinafter called “Allottee” (which expression shall unless repugnant to the context or meaning thereof be deemed to mean and include his/her heirs, executors, administrators, successors-in-interest and permitted assigns) of the Second Part.

The terms the Promoter and the Allottee shall hereinafter collectively be referred to as “Parties” and individually as a “Party”.

WHEREAS:

A. The Promoter No. 1 is the absolute owner of the residentially converted immovable Property bearing BBMP Khatha Serial No. 1 Survey No. 129 & 130, earlier bearing Survey No. 129 and Survey No. 130, (converted vide Official Memorandum in No. ALN(E)(B)SR:5/09-10, dated 29/05/2009 issued by the Special Deputy Commissioner, Bengaluru District,) situated at Byrathi Village, Bidarahalli Hobli, Bengaluru East Taluk measuring in total 13700.95 square meters or 1,47,477 square feet which is more fully mentioned and described in Item No. 1 of the Schedule ‘F’ hereunder.

B. The Promoter No. 1 is also the absolute owner of the residentially converted immovable Property bearing Survey No. 103/1, measuring 2 acres, Survey No. 103/2, measuring 2 acres and Survey No. 103/3, measuring 1 acre 23 guntas, in all measuring 5 acres 23 guntas, situated at Chikka Gubbi Village, Bidarahalli Hobli, Bengaluru East Taluk which is morefully mentioned and described in Item No. 2 of the Schedule ‘F’ hereunder.

C. The Properties mentioned and described in the Item No. 1 and Item No. 2 of the Schedule ‘F’ hereunder are adjacent to one another and totally measures 8 acres 38.02 guntas and unless specifically mentioned are collectively referred to as “Said Land”.

D. The Promoter No. 1 acquired the Said Land by virtue of the below mentioned Sale Deeds:

i] Sale Deed dated 14/06/2021, executed by Mrs. Pamela Oberoi and others registered vide Document No. SHV-1-01900/2021-22 of Book I, stored in C.D. No. SHVD 927, in the Office of the Sub-Registrar, Shivajinagar, Bengaluru with respect to Item No. 1 of the Schedule Property.

ii] Sale Deed dated 02/11/2021, executed by M/s. Aveda Properties registered vide Document No. BNS-1-09876/2021-22 of Book I, stored in C.D. No. BNSD 1376, in the office of the Sub-Registrar, Shivajinagar, Bengaluru with respect to Item No. 2 of the Schedule Property.

E. The Katha of the Item No. 1 of the Schedule Property is registered in the name of the Promoter No. 1 in the revenue records of the Bruhat Bengaluru Mahanagara Palike, Bengaluru and taxes with respect to the Item No. 1 is being paid to the Bruhat Bengaluru Mahanagara Palike, Bengaluru.

F. The Katha of the Item No. 2 of the Schedule Property is registered in the name of the Promoter No. 1 in the revenue records of the Kannur Grama Panchayath and taxes with respect to the Item No. 2 is being paid to the Kannur Grama Panchayath.

G. The Promoter No. 1 have been in peaceful possession and enjoyment of the Said Land and has been duly paying all taxes, cess, outgoings and all other public charges and has absolute unfettered right, title and interest in the Said Land.

H. The Promoter No. 2 is a company engaged in the business of real estate development and construction and the Promoters have entered into the Joint Development Agreement dated 25-04-2022, registered vide Document No. INR-1-00980/2022-23 of Book- I, stored in C.D. No. INRD1059, in the office of the Sub-Registrar, Shivajinagar (Indiranagar), Bengaluru for development of the Said Land in two phases by constructing multistoried residential apartment complex as may be sanctioned by the concerned Local Authority based on plans to be drawn by the Promoter No. 2. Pursuant to the said Joint Development Agreement, the Promoter No. 1 has executed the General Power of Attorney of even date registered vide Document No. INR-4-00147/2022-23 of Book IV, stored in C.D. No. INRD1059 in the office of the Sub-Registrar, Shivajinagar (Indiranagar), Bengaluru in favour of the Promoter No. 2 authorizing and empowering it to obtain all necessary permissions and sanctions and to sell the Apartments in the residential project being developed on the Said Land.

I. The Promoter No. 2 has obtained approval of the building plan comprising 4 Towers with Two basements, ground and twenty-two upper floors and one tower with ground plus nine floors with club house for construction of the multistoried residential apartment complex on the Said Land vide L.P. No. ಬೆಂಅಪ್ರಾ/ನಮ/ಅಸ /ಅಅ-2/ತಾಸ-3/ಉ//23/2022-23, dated 31-03-2023 issued by the, Bangalore Development Authority and the Project is being developed by the Promoters in two Phases which will be known as "DNR PARKLINK. In the Phase 1 the Promoters shall be constructing the 02 Towers (Tower A, B) in the Project and in the Phase 2, the Promoters shall be constructing the 03 Towers (Tower C, D, E) in the Project.

J. The Promoters agrees and undertakes that it shall not make any changes to the Approvals except in strict compliance with section 14 of the Karnataka Real Estate Regulatory Authority Act and other laws as applicable.

K. The Promoters have registered Phase 1 of the Project under the provisions of the Act with the Karnataka Real Estate Regulatory Authority at Bengaluru on 13/05/2023 under Registration No. PRM/KA/RERA/1251/446/PR/040823/006113.

L. The Allottee has applied for an apartment in the Project vide **Application dated 01/11/23** and has been allotted an **Apartment No. B-603 having RERA carpet area of 934 Sq.ft or a Super Built up Area of 1385 Sq.ft, having Balcony area measuring 70 Sqft, on 6th Floor in "B" Tower, along with ONE covered parking** as permissible under the applicable law and of pro rata share in the common areas ("**Common Areas**"), as defined under clause (n) of Section 2 of the Act and the said

Apartment is more fully mentioned and described in the Schedule 'A' hereunder and hereinafter referred to as **"Apartment"**.

M. The Parties have gone through all the terms and conditions set out in this Agreement and understood the mutual rights and obligations detailed herein and have affixed their signatures.

N. The Parties hereby confirm that they are signing this Agreement with full knowledge of all the laws, rules, regulations, notifications, etc., applicable to the Project.

O. The Parties, relying on the confirmations, representations and assurances of each other to faithfully abide by all the terms, conditions and stipulations contained in this Agreement and all applicable laws, are now willing to enter into this Agreement on the terms and conditions appearing hereinafter.

P. In accordance with the terms and conditions set out in this Agreement and as mutually agreed upon by and between the Parties, the Promoter hereby agrees to sell and the Allottee hereby agrees to purchase the Apartment and the covered/open parking.

NOW THEREFORE, in consideration of the mutual representations, covenants, assurances, promises and agreements contained herein and other good and valuable consideration, the Parties agree as follows:

1. Definitions:

For the purpose of this Agreement for Sale, unless the context otherwise requires,

a) **"Act"** shall mean the Real Estate (Regulation and Development) Act, 2016 (16 of 2016);

b) **"Agreement"** shall mean this Agreement for Sale including the recitals above, the schedules and all annexures attached hereto, as amended from time to time;

c) **"Association of Allottees or Owner's Association"** shall both mean the same, to be formed by the owners of the Apartments in the Project for the purpose of holding and maintenance of the Common Areas, the Common Amenities and Facilities of the Project;

d) **"Apartment"** means the Apartment allotted to the Allottee by the Promoters and agreed to be sold under this Agreement and mentioned and described in Schedule 'A' here below;

e) **"Apartment Specifications"** shall mean the broad specifications of the Apartment and detailed in the Schedule "D" here below or any equivalent thereof;

f) **"Appropriate Government"** shall mean the Government of Karnataka;

g) "**Approvals**" shall mean all those sanctions, certificates, approvals, permits, no-objection certificates, consents, including and not limited to building plans, development plan, etc., as are necessary and obtained from the statutory authority, for construction and development of the Project;

h) "**Authority**" shall mean the Karnataka Real Estate Regulatory Authority, established under the Act and Rules shall include the Real Estate Appellate Tribunal;

i) **"Building"** shall mean the building block/tower in the Project where the Apartment is located;

j) **"Carpet Area"** shall mean the net usable floor area of the Apartment, excluding the area covered by the external walls, areas under services shafts, exclusive balcony or verandah area and exclusive open area, but includes the area covered by the internal partition walls of the Apartment;

k) **"Common Areas"** shall collectively mean the Common Areas of the Project as defined under Section 2(n) of the Act, including but not limited to the land, common basements, terraces, parks, play areas, open parking areas all community and commercial facilities etc., in the Project as provided under the Act;

l) **"Force Majeure"** shall mean a case of war, flood, draught, fire, cyclone, earthquake, pandemic or any other calamity caused by nature affecting the regular development of the Project;

m) **"Maintenance Agency"** shall mean the Promoter or any of its nominee/ subsidiary or assigns or any person/entity appointed by the Promoters or the Association of Allottees as the exclusive maintenance managers of the Project and its Common Areas and services to be provided in the Project;

n) "**Notice**" shall mean any notice, request, demand or other communication required or permitted to be given under this Agreement;

o) **"Payment Plan"** shall mean the payment of the Total Price payable by the Allottee to the Promoters on such dates as mentioned in Schedule "C" here below;

p) **"Specifications"** shall mean the broad specifications of the Development and Project detailed in the Schedule 'F' here below;

q) "**Phase 1**" shall mean the Apartments in Towers 'A' and 'B' being constructed on the Said Land in the Phase 1 development including the Club House.

r) "**Phase 2**" shall mean the Apartments in Towers 'C', 'D' and 'E' being constructed on the Said Land in the Phase 2 development including the amenities and other facilities.

s) "**Project**" shall mean the real estate project of multistoried building comprising a residential apartment complex in Phase 1 and Phase 2 being developed on the Said Land as may be decided by the Promoter No. 2 and known as **"DNR PARKLINK"**;

t) **"Project Specifications**" means the broad specifications of the Project with the provision of the Common Areas provided therein and detailed in Schedule 'E' here below;

u) **"Rules"** means the Karnataka Real Estate (Regulation and Development) Rules, 2017 made under the Real Estate (Regulation and Development) Act, 2016;

v) **"Regulations"** means the Regulations made under the Real Estate (Regulation and Development Act, 2016;

w) **"Said Land"** means the Property bearing BBMP Khatha Serial No. 1 Survey No. 129 & 130, earlier bearing Survey No. 129 and Survey No. 130, measuring 13700.95 Sq mt or 1,47,477 square feet, situated at Byrathi Village, Bidarahalli Hobli, Bengaluru East Taluk and Survey No. 103/1, measuring 2 acres, Survey

No. 103/2, measuring 2 acres, Survey No. 103/3, measuring 1 acre 23 guntas, in all measuring 5 acres 23 guntas, situated at Chikka Gubbi Village, Bidarahalli Hobli, Bengaluru East Taluk.

x) "**Statutory Payments**" shall mean statutory charges, levies, taxes or new pronouncements by applicable law, amendments to the current laws, introduction of new statutory levies, taxes, cess etc., GST, which may be imposed by the Authorities – State and Central Government from time to time and includes such amounts, charges, deposits and any amount collected towards providing infrastructure towards BESCOM and BWSSB and stamp duty, registration and any statutory dues/fees/penalties, cost towards the additional works, modification charges etc.

y) **"Total Price"** means the sum total of the cost payable towards the Apartment by the Allottee to the Promoter as detailed in Clause 2.2 here below;

z) **"Section"** means a section of the Act.

2. Terms:

2.1. Subject to the terms and conditions as detailed in this Agreement and the rights and obligations of the Allottee as specified in the Schedule 'G' here below, the Promoters agree to sell to the Allottee and the Allottee hereby agrees to purchase the Apartment as specified in Recital 'H' here above.

2.2. The Total Price for the Apartment based on the carpet area is **Rs.1,05,65,900/- (Rupees One Crore Five Lakhs Sixty Five Thousand Nine Hundred Only)**. The Total Price of the Apartment is calculated in the manner mentioned here below:

Agreement Value	
Particulars	
Base Price - Total	Rs.1,00,41,250-/-
Floor Rise (FRC)	Rs.1,24,650-/-
Car Park Development Charges	Rs.4,00,000-/-
Premium Location Charges (PLC)	
Total	**Rs.1,05,65,900-/-**
Other Charges 1	
Particulars	
Electricity & Water Infra Charges (BESCOM & BWSSB) and DG Infra Charges	Rs.3,46,250-/-
Water Meter Charges	Rs.25,000-/-
Club Development Charges	Rs.3,00,000-/-
Khatha & Assessment Liaison Charges- Excluding fee payment to BBMP	Rs.40,000-/-
Legal Fees	Rs.30,000-/-
Total	**Rs.7,41,250-/-**
Other Charges 2	
Particulars	
Maintenance Charges (for one year in advance)	Rs.83,100-/-
Sinking Fund	Rs.55,400-/-
Total	**Rs.1,38,500/-**
TOTAL CONSIDERATION	**Rs.1,14,45,650-/-**

Explanation:

(i) The Total Price above includes the booking amount paid by the Allottee to the Promoters towards the Apartment;

(ii) The Total Price above excludes the Statutory Payments like Goods and Service Tax (GST) or any other similar taxes which may be levied, in connection with the construction of the Project payable by the Promoters, by whatever name called) up to the date of handing over of the possession of the Apartment to the Allottee and the Common Areas in the Project to the Association of Allottees or the competent authority, as the case may be, after obtaining the occupancy certificate.

Provided that in case there is any change / modification in the Statutory Payment, the subsequent amount payable by the Allottee to the Promoter shall be increased/reduced based on such change / modification:

Provided further that if there is any increase in the Statutory Payments after the expiry of the scheduled date of completion of the Project as per registration with the Authority, which shall include the extension of registration, if any, granted to the said Project by the Authority, as per the Act, the same shall not be charged to the Allottee;

(iii) The Promoters shall periodically intimate in writing to the Allottee, the installments towards the Total Price and the Allottee shall make payment as demanded by the Promoters within the time and in the manner specified therein. In addition, the Promoters shall provide to the Allottee the details of the Statutory Payments paid or demanded along with the acts/rules/notifications together with dates from which such taxes/levies etc., have been imposed or become effective;

(iv) The Total Price includes recovery price of the Said Land, construction of [not only the Apartment but also] the Common Areas, internal development charges, external development charges, taxes, cost of providing electric wiring, electrical connectivity to the Apartment, lift, water line and plumbing, finishing with paint, marbles, tiles, doors, windows, fire detection and firefighting equipment in the common areas, maintenance charges as per **Clause 13** etc., and includes cost for providing all other facilities, amenities and specifications to be provided within the Apartment and the Project.

2.3. The Total Price is escalation-free, save and except increases which the Allottee hereby agrees to pay, due to increase on account of development charges payable to the competent authority and/or any other increase in charges which may be levied or imposed by the competent authority from time to time or due to any changes/modifications sought by the Allottee. The Promoter undertakes and agrees that while raising a demand on the Allottee for increase in development charges, cost/charges imposed by the competent authorities, the Promoters shall enclose the said notification/order/rule/regulation to that effect along with the demand letter being issued to the Allottee, which shall only be applicable on subsequent payments. Provided that if there is any new imposition or increase of any development charges after the expiry of the scheduled date of completion of the Project as per registration with the Authority, which shall include the extension of registration, if any, granted to the said Project by the Authority, as per the Act, the same shall not be charged to the Allottee.

2.4. The Allottee shall make the payment as per the Payment Plan.

2.5. The Promoters may allow, in its sole discretion, a rebate for early payments of instalments payable by the Allottee by discounting such early payments @ 9% per annum for the period by which the respective instalment has been preponed. The provision for allowing rebate and such rate of rebate shall not be subject to any revision/withdrawal, once granted to the Allottee by the Promoters.

2.6. It is agreed that the Promoters shall not make any additions and alterations in the sanctioned plans and the Specifications and the nature of fixtures, fittings and amenities described in the Apartment Specifications and the Specifications (which shall be in conformity with the advertisement, prospectus etc., on the basis of which sale is effected) in respect of the Apartment or building, as the case may be, without the previous written consent of the Allottee as per the provisions of the Act. Provided that the Promoters may make such minor additions or alterations as may be required by the Allottee or such minor changes or alterations as per the provisions of the Act.

2.7. The Promoters shall conform to the final Carpet Area that has been allotted to the Allottee after construction of the Building and the occupancy certificate is granted by the competent authority, by furnishing details of the changes, if any, in the Carpet Area. The total price payable for the Carpet Area shall be recalculated upon confirmation by the Promoters. If there is reduction in the Carpet Area, which is more than three percent of the Carpet Area of the Apartment, then the Promoters shall refund the excess money paid by the Allottee within forty-five days with annual interest at the rate prescribed in the Rules, from the date when such an excess amount was paid by the Allottee. If there is any increase in the Carpet Area, which is not more than three percent of the Carpet Area of the Apartment, allotted to the Allottee, the Promoters may demand that from the Allottee as per the next milestone of the Payment Plan. All these monetary adjustments shall be made at the same rate per square feet as agreed in Para 2 of this Agreement.

2.8. Subject to Clause **10.3** the Promoters agree and acknowledge that the Allottee shall have the right to the Apartment as mentioned below:

(i) The Allottee shall have exclusive ownership of the Apartment;

(ii) The Allottee shall also have undivided proportionate share in the Common Areas. Since the share / interest of the Allottee in the Common Areas is undivided and cannot be divided or separated, the Allottee shall use the Common Areas along with other occupants, maintenance staff etc., without causing any inconvenience or hindrance to them. It is clarified that the Promoters shall hand over the Common Areas to the Association of Allottees after duly obtaining the occupancy certificate from the competent authority as provided in the Act;

(iii) The Allottee has the right to visit the Project site with prior appointment to assess the extent of development of the Project and his Apartment as the case may be. The Allottee shall observe all the safety regulations at the Project site and that the Promoters shall not liable for any injury caused during the site visit.

2.9. It is made clear by the Promoters and the Allottee agrees that the Apartment along with **ONE** covered parking shall be treated as a single indivisible unit for all purposes. It is agreed that the development is an independent, self-contained project in the overall development being made on the Said Land as Phase I and some of the Common Areas and facilities provided will be part of the Phase II of the Project. The development made in the Project will not be part of any other project or zone and shall not form a part of and/or linked/combined with any other project in its vicinity or otherwise except for the purpose of integration of infrastructure in the Phase I and Phase II for the benefit of the Allottee. It is clarified that the facilities and amenities provided in the Project shall be available for use and enjoyment of all the Allottees of the Project.

2.10. The Promoters agree to pay all outgoings before transferring the physical possession of the Apartment to the Allottee, which it has collected from the Allottee, for the payment of outgoings (including land cost, ground rent, municipal or other local taxes, charges for water or electricity, maintenance charges, including mortgage loan and interest on mortgages or other encumbrances and

such other liabilities payable to competent authorities, banks and financial institutions, which are related to the Apartment).

2.11. The Allottee has paid the sum of **Rs.10,56,590/- (Rupees Ten Lakhs Fifty Six Thousand Five Hundred and Ninety Only) as booking amount** being part payment towards the Total Price of the Apartment at the time of application, the receipt of which the Promoters hereby acknowledge and the Allottee hereby agrees to pay the balance Total Price as prescribed in the Payment Plan as may be demanded by the Promoters within the time and in the manner specified therein. Provided, that if the Allottee delays in payment towards any amount which is payable under this Agreement, he shall be liable to pay interest at the rate prescribed in the Rules.

3. **Mode of Payment**:

3.1. Subject to the terms of the Agreement and the Promoters abiding by the construction milestones, the Allottee shall make all payments, on written demand by the Promoters, within the stipulated time as mentioned in the Payment Plan through A/c Payee cheque/demand draft/banker's cheque or online payment (as applicable) in favour of "**DNR CORPORATION PVT LTD A/c. No. 000205037047-593318310** at ICICI Bank Ltd, MG Road branch, payable at Bengaluru.

4. Compliance of Laws relating to remittances:

4.1. The Allottee, if resident outside India, shall be solely responsible for complying with the necessary formalities as laid down in Foreign Exchange Management Act, 1999, Reserve Bank of India Act, 1934 and the Rules and Regulations made there under or any statutory amendment(s) modification(s) made thereof and all other applicable laws including that of remittance of payment acquisition/sale/transfer of immovable properties in India etc., and provide the Promoters with such permission, approvals which would enable the Promoter to fulfill its obligations under this Agreement. Any refund, transfer of security, if provided in terms of the Agreement shall be made in accordance with the provisions of Foreign Exchange Management Act, 1999 or the statutory enactments or amendments thereof and the Rules and Regulations of the Reserve Bank of India or any other applicable law. The Allottee understands and agrees that in the event of any failure on his/her part to comply with the applicable guidelines issued by the Reserve Bank of India, he/she may be liable for any action under the Foreign Exchange Management Act, 1999 or other laws as applicable, as amended from time to time.

4.2. The Promoters accept no responsibility in regard to matters specified in Clause 4.1. above. The Allottee shall keep the Promoters fully indemnified and harmless in this regard. Whenever there is any change in the residential status of the Allottee subsequent to the signing of this Agreement, it shall be the sole responsibility of the Allottee to intimate the same in writing to the Promoters immediately and comply with necessary formalities if any under the applicable laws. The Promoters shall not be responsible towards any third party making payment/remittances on behalf of any Allottee and such third party shall not have any right in the application/allotment of the said apartment applied for herein in any way and the Promoters shall be issuing the payment receipts in favour of the Allottee only.

5. Adjustment/Appropriation of Payments:

5.1. The Allottee authorizes the Promoters to adjust/appropriate all payments made by him/her under any head(s) of dues against lawful outstanding of the Allottee against the Apartment, if any, in his/her name and the Allottee undertakes not to object/demand/direct the Promoters to adjust his payments in any manner.

6. **Time is Essence:**

6.1. The Promoters shall abide by the time schedule for completing the Project as disclosed at the time of registration of the Project with the Authority and towards handing over the Apartment to the Allottee and the Common Areas to the Association of Allottees or the competent authority, as the case may be.

7. **Construction of the Project / Apartment:**

7.1. The Allottee has seen the Approvals which has been approved by the competent authority, Apartment Specifications and the Project Specifications [annexed along with this Agreement] and has accepted the floor plan and Payment Plan. The Promoters shall develop the Project in accordance with the said Approvals floor plans and the Specifications, amenities and facilities. Subject to the terms in this Agreement, the Promoters undertake to strictly abide by the Approvals and shall also strictly abide by the bye-laws, FAR and density norms and provisions prescribed by the concerned statutory authority and shall not have an option to make any variation /alteration / modification in such plans, other than in the manner provided under the Act, and breach of this term by the Promoters shall constitute a material breach of the Agreement.

7.2. The Promoters will be developing the Said Land in two Phases and the Promoters are entitled to carry on the developmental works. The Allottee shall have no power, right or authority to object such development either now or later. The Promoters have specifically reserved the right to develop the Said Land in phases with irrevocable right to use the roads / passages in the Project to reach the portion of the Said Land for developmental purposes. The right to use the roads and passages is in perpetuity and is a restrictive covenant that runs with the Said Land and irrevocable under any circumstance and neither the Allottee nor the Association of the Allottees to be formed shall have the right to question such use and enjoyment of the roads and passages and other amenities and facilities in the Project by the Promoters and/or their transferee/s and/or persons claiming under them at all times and on other hand, the Allottee shall co-operate with the Promoters in implementing the Project and this is an essential condition of this agreement.

7.3. The Allottee shall not obstruct and/or interfere in the development or construction process of the development in the Said Land. The construction in the Said Land will be in progress at all times of the day and night and even on holidays. The Allottee and/or the Association of the Allottees shall have no power or authority to object for such development and construction as aforesaid.

8. Possession of the Apartment:

8.1. The Schedule for possession of the Apartment – The Promoters agree and understand that timely delivery of possession of the Apartment to the Allottee and the Common Areas to the Association of Allottees or the competent authority, as the case may be, is the essence of the Agreement. The Promoters assure to hand over possession of the Apartment along with ready and complete Common Areas with all Specifications, amenities and facilities of the Project in place on **31-12-2027**, unless there is delay due to Force Majeure. If, however, the completion of the Project is delayed due to the Force Majeure conditions then the Allottee agrees that the Promoters shall be entitled to the extension of time for delivery of possession of the Apartment, provided that such Force Majeure conditions are not of a nature which make it impossible for the contract to be implemented. The Allottee agrees and confirms that, in the event it becomes impossible for the Promoters to implement the Project due to Force Majeure conditions, then this allotment shall stand terminated and the Promoters shall refund to the Allottee the entire amount received by the Promoters from the allotment within forty-five (45) days from that date. The Promoters shall intimate the Allottee about such termination at least thirty days prior to such termination. After refund of the money paid by the Allottee, the Allottee agrees that he/ she shall not have any rights, claims etc. against the Promoters and that the Promoters shall be released and discharged from all their obligations and liabilities under this Agreement.

8.2. Procedure for taking possession - The Promoters shall offer in writing the possession of the Apartment, to the Allottee in terms of this Agreement to be taken within two months from the date of issue of occupancy certificate. The Allottee shall within three (03) months from the date of receipt of the intimation from the Promoters, pay the full Total Price to the Promoters and obtain the conveyance of the Apartment in his/her favour from the Promoters and extend all co-operation to the Promoters to complete execution and registration of the sale deed in favour of the Allottee. The Promoters agrees and undertakes to indemnify the Allottee in case of failure of fulfilment of any of the provisions, formalities, documentation on part of the Promoters. The Allottee, agree(s) to pay the maintenance charges as determined by the Promoters or the Association of Allottees, as the case may be from the date of issuance of the occupancy certificate for the Project. The Promoters shall hand over the occupancy certificate of the Project, as the case may be, to the Allottee at the time of conveyance of the same.

8.3. Failure of the Allottee- to take possession of the Apartment- Upon receiving a written intimation from the Promoters as per Clause 8.2, the Allottee shall take possession of the Apartment from the Promoters by executing necessary indemnities, undertakings and such other documentation in favour of the Promoter, as prescribed in this Agreement, and the Promoters shall give possession of the Apartment to the Allottee. In case the Allottee fails to take possession within the time provided in Clause 8.2, the Allottee shall continue to be liable to pay maintenance charges as specified in Clause 8.2 and holding charges at the rate of Rs.2/- (Rupees Two only) per square feet per month plus GST.

8.4. Possession by the Allottee - After obtaining the occupancy certificate and handing over physical possession of the Apartment to the Allottee, it shall be the responsibility of the Promoters to hand over the necessary documents and plans, including Common Areas, to the Association of Allottees or the competent authority or to the Allottee in turn to be handed over to the Association of Allottees, as the case may be, as per the local laws. All interior works in the Apartment that the Allottee may take up on his own can be taken up only after handing over possession of the Apartment to the Allottee by the Promoter. The interior works shall be carried out only on week days during the day time between 9 AM and 6 PM. The Promoters do not owe any responsibility for any breakage and damages caused to any of the finished works or the structure already handed over to the Allottee. The Promoters will not be answerable or liable to any thefts or accidents during the course of the interior works. The Allottee shall be responsible and liable for any claim/damage/third party claim due to any accident or occurrence of any untoward incident while carrying out the interior works. The Allottee shall obtain necessary approvals/licenses and shall bear the statutory payments as applicable. The Allottee shall also secure necessary insurance towards accidents or any other incidents.

8.5. Cancellation by Allottee – The Allottee shall have the right to cancel/withdraw his allotment in the Project only in case of an Event of Default committed by the Promoters in terms of Clause 10 below, provided that, where the Allottee proposes to cancel/withdraw from the Project without any fault of the Promoters, the Promoters are entitled to forfeit the booking amount paid for the allotment, which shall be equivalent to 10% of the Total Price plus taxes (i.e., GST) paid and brokerage, if any. The balance amount of money paid by the Allottee shall be returned, without interest, by the Promoters to the Allottee once the Apartment is resold to another purchaser subject to the Allottee discharging the loan if any obtained on the security of the Apartment and handing over the original of this Agreement duly cancelled and executing and registering the Cancellation Deed with the jurisdictional Sub-Registrar.

8.6. Compensation – The Promoters shall compensate the Allottee in case of any loss caused to him due to defective title of the land, on which the Project is being developed or has been developed, in the manner as provided under the Act and the claim for interest and compensation under this provision shall not be barred

by limitation provided under any law for the time being in force. Except for occurrence of a Force Majeure event, if the Promoters fail to complete or is unable to give possession of the Apartment (i) in accordance with the terms of this Agreement, duly completed by the date specified in Clause 8.1; or (ii) due to discontinuance of their business as a developer on account of suspension or revocation of the registration under the Act; or for any other reason; the Promoters shall be liable, on demand to the Allottee, in case the Allottee wishes to withdraw from the Project, without prejudice to any other remedy available, to return the total amount received by him in respect of the Apartment with interest at the rate prescribed in the Rules including compensation in the manner as provide under the Act within forty-five days of it becoming due. Provided that where if the Allottee does not intend to withdraw from the Project, the Promoters shall pay the Allottee interest at the rate prescribed in the Rules for every month of delay, till the handing over of the possession of the Apartment, which shall be paid by the Promoter to the Allottee within forty-five days of it becoming due.

9. Representations and Warranties of the Promoters:

9.1. The Promoters hereby represent and warrant to the Allottee as follows:

(i) The Promoters have absolute, clear and marketable title with respect to the Said Land with requisite rights to carry out development upon the Said Land and absolute, actual, physical and legal possession of the Said Land for the Project;

(ii) The Promoters have lawful rights and requisite Approvals from the competent authorities to carry out development of the Project;

(iii) There are no encumbrances upon the Said Land or the Project;

(iv) There are no litigations pending before any Court of law or Authority with respect to the Said Land, Project or the Apartment;

(v) All approvals, licenses and permits issued by the competent authorities with respect to the Project, Said Land and the Apartment are valid and subsisting and have been obtained by following due process of law. Further, the Promoters have been and shall, at all times, remain to be in compliance with all applicable laws in relation to the Project, Said Land, Building and the Apartment and the Common Areas;

(vi) The Promoters have the right to enter into this Agreement and have not committed or omitted to perform any act or thing, whereby the right, title and interest of the Allottee created herein, may prejudicially be affected;

(vii) The Promoters have not entered into any agreement for sale and/or development agreement or any other agreement / arrangement with any person or party with respect to the Said Land, including the Project and the Apartment which will, in any manner, affect the rights of Allottee under this Agreement;

(viii) The Promoters confirm that they are not restricted in any manner whatsoever from selling the Apartment to the Allottee in the manner contemplated in this Agreement;

(ix) At the time of execution of the conveyance deed the Promoters shall handover lawful, vacant, peaceful, physical possession of the Apartment to the Allottee and the Common Areas to the Association of Allottees or the competent authority or to the Allottee in turn to be handed over to the Association of Allottees as the case may be;

(x) The Said Land is not the subject matter of any HUF and that no part thereof is owned by any minor and/or no minor has any right, title and claim over the Said Land;

(xi) The Promoters have duly paid and shall continue to pay and discharge all governmental dues, rates, charges and taxes and other monies, levies, impositions, premiums, damages and/or penalties and other outgoings, whatsoever, payable with respect to the Project to the competent authorities till the occupancy certificate has been issued and possession of the Apartment, along with the Common Areas (equipped with all the specifications, amenities and facilities) has been handed over to the Allottee and the Association of Allottees or the competent authority, as the case may be;

(xii) No notice from the Government or any other local body or authority or any legislative enactment, government ordinance, order, notification (including any notice for acquisition or requisition of the said property) has been received by or served upon the Promoters in respect of the said Land and/or the Project.

10. **Events of Defaults and Consequences:**

10.1. Subject to the Force Majeure, the Promoters shall be considered under a condition of Default, in the following events:

(i) The Promoters fail to provide ready to move in possession of the Apartment to the Allottee within the time period specified in Clause 8.1 or fails to complete the Project within the stipulated time disclosed at the time of registration of the Project with the Authority. For the purpose of this clause, 'ready to move in possession' shall mean that the Apartment shall be in a habitable condition which is complete in all respects including the provision of all specifications, amenities and facilities, as agreed to between the Parties, and for which occupation certificate or completion certificate, as the case may be, has been issued by the competent authority;

(ii) Discontinuance of the Promoter's business as a developer on account of suspension or revocation of their registration under the provisions of the Act or the Rules or regulations made there under.

10.2. In case of default by the Promoters under the conditions listed above, the Allottee is entitled to the following:

(i) Stop making further payments to the Promoters as demanded by the Promoters. If the Allottee stops making payments, the Promoters shall correct the situation by completing the construction milestones and only thereafter the Allottee be required to make the next payment without any interest; or

(ii) The Allottee shall have the option of terminating the Agreement in which case the Promoters shall be liable to refund the entire money paid by the Allottee under any head whatsoever towards the purchase of the Apartment, along with interest at the rate prescribed in the Rules within forty-five days of receiving the termination notice subject to the Allottee discharging the loan if any obtained on the security of the Apartment and handing over the original of this Agreement duly cancelled and executing and registering the Cancellation Deed with the jurisdictional Sub-Registrar: Provided that where the Allottee does not intend to withdraw from the Projector terminate the Agreement, he shall be paid, by the Promoters, interest at the rate prescribed in the Rules, for every month of delay till the handing over of the possession of the Apartment, which shall be paid by the Promoters to the Allottee within forty-five days of it becoming due.

10.3. The Allottee shall be considered under a condition of default, on the occurrence of the following events:

(i) In case the Allottee fails to make payments for 2 consecutive demands made by the Promoters as per the Payment Plan, despite having been issued notice in that regard the Allottee shall be liable to pay interest to the Promoters on the unpaid amount at the rate prescribed in the Rules;

(ii) In case of default by the Allottee under the condition listed above continues for a period beyond 2 consecutive months after notice from the Promoters in this regard, the Promoters may cancel the allotment of the Apartment in favour of the Allottee and the Promoters herein are entitled to forfeit the booking amount paid for the allotment, which shall be equivalent to 10% of the Total Price plus taxes (i.e., GST) paid and brokerage, if any. The balance amount of money paid by the Allottee shall be returned, without interest, by the Promoters to the Allottee once the Apartment is resold to another purchaser subject to the Allottee discharging the loan if any obtained on the security of the Apartment and handing over the original of this Agreement duly cancelled and executing and registering the Cancellation Deed with the jurisdictional Sub-Registrar.

Provided that the Promoters shall intimate the Allottee about such termination at least thirty days prior to such termination.

11. Conveyance of the Apartment:

11.1. The Promoters, on receipt of Total Price of the Apartment from the Allottee, shall execute a conveyance deed and convey the title of the Apartment together with proportionate indivisible share in the Common Areas within three (03) months from the date of issuance of the occupancy certificate to the Allottee. However, in case the Allottee fails to pay the full Total Price or deposit the stamp duty and/or registration charges within the period mentioned in the notice, the Allottee authorizes the Promoters to withhold registration of the conveyance deed in his/her favour till payment of full Total Price, stamp duty and registration charges to the Promoters is made by the Allottee.

11.2. The stamp duty and the registration charges, prevailing at the time of registration of sale deed, legal expenses and all other miscellaneous and incidental expenses for execution and registration of the Sale Deed including the deficit stamp duty and registration fee that may be demanded by the Special Deputy Commissioner for Detection of Undervaluation of Stamps and other Authorities for conveyance of the Apartment and the proportionate share of the Common Areas shall be borne by the Allottee. The Sale Deed preparation and registration shall be done only through the Advocate Firm identified by the Promoters to ensure that uniformity is maintained in documentation for the entire Project. In the event of the Sale Deed being referred to the authorities for adjudication of stamp duty and/or under valuation of the Apartment and/or the Common Area, it is the responsibility of the Allottee to attend to the same at his cost and secure release of the Sale Deed and the Promoters shall have no liability in respect thereto.

11.3. Upon registration of the Sale Deed in favour of the Allottee conveying the Apartment, the Allottee shall get the khatha of the Apartment transferred and registered in his name. The Promoters will only be obligated to get the assessment of the Apartment to taxes initially bifurcate the khatas to individual apartment and the Allottee shall at his cost and expense be solely responsible to obtain the transfer of the katha of the Apartment in his name with the revenue authorities.

12. Assignment/Nomination:

12.1. The Allottee shall not be entitled to transfer or assign his/her rights in this Agreement to any third party, till the payment of the entire consideration and the handover of possession of the Apartment and upon obtaining a written consent from the Promoters. The Allottee shall not have the right, in any way to sell, assign or transfer the interest under this Agreement at any time before the handover of the Apartment or registration of the sale deed whichever is later.

12.2. The Promoters at their discretion may allow the Allottee to assigns his /her rights in the Apartment by paying an assignment fee of Rs.100/- on the Super Built Up Area of the Apartment with applicable Taxes.

13. **Maintenance of the Building / Apartment / Project & Sinking Fund:**

13.1. The Promoters shall be responsible to provide and maintain essential services in the Project till the taking over of the maintenance of the Project by the Association of Allottees upon the issuance of the occupancy certificate of the Project. The cost of such maintenance excluding taxes for 12 months has been included in the Total Price.

13.2. The amount of the estimated Maintenance Charges mentioned hereinabove in Clause 2.2 is indicative only and the Allottee shall be bound to pay the actual maintenance charges as determined by the Promoters either to the Promoters or to the maintenance agency and the Allottee shall not object or refuse to pay the actual maintenance to the Promoters in any manner. The liability to pay the Maintenance Charges shall commence immediately upon completion of the Phase 1 and partial occupancy certificate is obtained and irrespective non-completion of the Phase 2 of the Project and the Club House. The Allotee is fully aware that certain outdoor amenities would be only available on completion of 2nd phase of development and allottee shall not deduct, hold or delay any maintenance charge due towards them based on non-completion of phase 2 development.

13.3. **Sinking Fund**: The Allottee shall also at the time of taking possession of the Apartment, shall pay the sum as mentioned in Clause 2.2 here above as owner's contribution towards "**Sinking Fund**". The whole of the Sinking Fund made up of the contributions by the owners of the apartments in Phase 1 Project/Project shall be retained by the Promoters till the formation of Owners' Association in Project and transfer the same to the Owners Association without any interest thereon. Provided, if the maintenance of the Project is entrusted to the Promoter No. 2, the Promoter No. 2 shall retain the Sinking Fund. The Allottee shall have no right or authority to claim the refund/transfer of the Sinking Fund on sale/transfer of the Apartment to any third party/ies. The contribution towards the Sinking Fund is collected to ensure availability of funds for any major repairs or maintenance works that may be required to be undertaken in the Project.

14. Defect Liability:

14.1 It is agreed that in case any structural defect or any other defect in workmanship, quality or provision of services or any other obligations of the Promoters as per the Agreement relating to such development, and such defects not being attributable to the acts or omissions of the Allottee, is brought to the notice of the Promoters within a period of 5 (five) years by the Allottee from the date of handing over the Apartment for fit-outs or from the date of intimation by the Promoters to handover the Apartment upon completion, it shall be the duty of the Promoters to rectify such defects without further charge, within 30 (thirty) days. Provided, however, that the word defect here means only the manufacturing & workmanship defect/s caused on account of willful neglect on the part of the Promoters, and shall not mean defect/s caused by normal wear and tear and by negligent use of Apartment by the Allottee or occupants or by the Owner's Association and vagaries of nature etc. Defect in fittings and fixture are not included therein.

14.2 It is further agreed that the Allottee shall not carry out any alterations whatsoever in the Apartment or in the fittings therein, and in particular it is hereby agreed that the Allottee shall not make any alterations in any of the RCC structure, fittings, pipes, water supply connections or any other erection in the bathroom, toilet, WC, terrace, etc., In the event if such works are carried out by the Allottee or any heavy load are stored in the said Apartment, balcony, terrace etc., by the Allottee, the Promoters' liability including the defect liability automatically shall become void and the Allottee alone shall be responsible for all the consequential defects/damages to

the Apartment/Project. Further, the Allottee shall be liable to pay the damages, if any, to the other purchasers of the apartments/units in the Project for any damage caused to their apartments/ due to the Allottee's negligent act, and the Promoters shall not be liable for the same.

14.3 The Promoters have agreed to provide certain CP Fittings, Sanitary Fittings, electric, electronic and mechanical equipment manufactured by third party as part of the Specifications / amenities inside the Project or in the Apartment such as security system, intercom system, lifts, Generators, Windows or any other electrical equipment etc., of the quality and standard as agreed in the Specifications. The warranty and Guarantee of these Plumbing, Electronic and Mechanical equipment will be as per the manufacturer's policies, thus the Promotors shall not be liable to include these plumbing, electronic and mechanical equipment under Second Party's Defect Liability Obligation.

15. Right to enter the Apartment for Repairs:

15.1. The Promoters / Maintenance Agency /Association of Allottees shall have rights of unrestricted access of all Common Areas, covered parking and parking spaces for providing necessary maintenance services and the Allottee agrees to permit the Association of Allottees and/or Maintenance Agency to enter into the Apartment or any part thereof, after due notice and during the normal working hours, unless the circumstances warrant otherwise, with a view to set right any defect.

16. Usage:

16.1. Use of Basement and Service Areas: The basement(s) and service areas, if any, as located within the Project, shall be earmarked for purposes such as parking spaces and services including but not limited to electric sub-station, transformer, DG set rooms, underground water tanks, pump rooms, maintenance and service rooms, fire-fighting pumps and equipment's etc. and other permitted uses as per sanctioned plans. The Allottee shall not be permitted to use the services areas and the basements in any manner whatsoever, other than those earmarked as parking spaces, and the same shall be reserved for use by the Association of Allottees formed by the allottees for rendering maintenance services.

16.2. The garden area, open space and other common amenities and facilities in the Project that are earmarked for common use and enjoyment of the owners of the apartments the same shall be kept free from obstructions and constructions at all times and always maintained for the purposes meant for. No owners of the apartments of the respective blocks in the Project shall enclose the blocks with any compound or fencing.

17. Club:

17.1. The Promoters, as part of the development, endeavor to provide recreational facilities such as club house (including swimming pool and other amenities) for the benefit, enjoyment and use of the Allottee or occupants of all the Phases of development on the Said Land. The Promoters have made it clear to the Allottee and the Allottee has understood and accepted that the entire usage of the Club House will be made available only after completion of the Phase 1 and Phase 2 of the Project. Majority of the club house development will be ready upon completion of phase1, and it will soon be available for its usage. The Promoters shall determine the rules and regulations, conditions of access, use as well as charges for use of the club house and various facilities and the Allottee agrees to abide by that. The decision of the Promoters shall be final and binding in maintaining such recreational facilities. The Allottee shall have the right to use the club house, swimming pool and other amenities along with other occupants. The Allottee shall also pay the subscription

maintenance and administrative charges of the clubhouse and amenities as demanded by the Promoters or by the Owners Association of DNR Parklink.

18. General compliance with respect to the Apartment:

18.1. Subject to Clause 12 above, the Allottee shall, after taking possession, be solely responsible to maintain the Apartment at his/her own cost, in good repair and condition and shall not do or suffer to be done anything in or to the Building, or the Apartment or the staircases, lifts, common passages, corridors, circulation areas, atrium or the compound which may be in violation of any laws or rules of any authority or change or alter or make additions to the Apartment and keep the Apartment, its walls and partitions, sewers, drains, pipe and appurtenances thereto or belonging thereto, in good and tenantable repair and maintain the same in a fit and proper condition and ensure that the support, shelter etc. of the Building is not in any way damaged or jeopardized.

18.2. The Allottee further undertakes, assures and guarantees that he/she would not put any signboard / nameplate, neon light, publicity material or advertisement material etc. on the face / facade of the Building or anywhere on the exterior of the Project, buildings therein or Common Areas. The Allottees shall also not change the colour scheme of the outer walls or painting of the exterior side of the windows or carry out any change in the exterior elevation or design. Further the Allottee shall not store any hazardous or combustible goods in the Apartment or place any heavy material in the common passages or staircase of the Building. The Allottee shall also not remove any wall, including the outer and load bearing wall of the Apartment.

18.3. The Allottee shall plan and distribute its electrical load in conformity with the electrical systems installed by the Promoter and thereafter the Association of Allottees and/or the Maintenance Agency. The Allottee shall be responsible for any loss or damages arising out of breach of any of the aforesaid conditions.

19. Compliance of Laws, Notifications etc., by the Parties:

19.1. The Parties are entering into this Agreement for the allotment of an Apartment with the full knowledge of all laws, rules, regulations, notifications applicable to the Project.

20. Additional Constructions:

20.1. The Promoter undertakes that it has no right to make additions or to put up additional structure(s) anywhere in the Project after the building plan, layout plan, sanction plan and specifications, amenities and facilities has been approved by the competent authority(ies) and disclosed, except for as provided in the Act.

21. Promoters not to Mortgage or Create Charge:

21.1. After the Promoters executes this Agreement they shall not mortgage or create a charge on the Apartment and if any such mortgage or charge is made or created then notwithstanding anything contained in any other law for the time being in force, such mortgage or charge shall not affect the right and interest of the Allottee who has taken or agreed to take such Apartment.

22. THE KARNATAKA APARTMENT OWNERSHIP ACT, 1972 and THE KARNATAKA OWNERSHIP FLATS (REGULATION OF THE PROMOTION OF THE CONSTRUCTION, SALE, MANAGEMENT AND TRANSFER) ACT, 1972:

22.1 The Promoters have assured the Allottees that the Project in its entirety is in accordance with the provisions of the Karnataka Apartment of Ownership Act, 1972 (Karnataka Act 17 of 1973) and the Karnataka Ownership Flats (Regulation of the Promotion of the Construction, Sale, Management and Transfer) Act, 1971. The

Promoters showing compliance of various laws/regulations as applicable in the State of Karnataka and its revision thereafter from time to time.

23. Binding Effect:

23.1. Forwarding this Agreement to the Allottee by the Promoters do not create a binding obligation on the part of the Promoters or the Allottee until, firstly, the Allottee signs and delivers this Agreement with all the schedules along with the payments due as stipulated in the Payment Plan within 30 (thirty) days from the date of receipt by the Allottee and secondly, appears for registration of the same before the concerned Sub-Registrar, Shivajinagar, Bengaluru (and/or its sub-offices) as and when intimated by the Promoters. If the Allottee fails to execute and deliver to the Promoters this Agreement within 30 (thirty) days from the date of its receipt by the Allottee and/or appear before the Sub-Registrar for its registration as and when intimated by the Promoters, then the Promoters shall serve a notice to the Allottee for rectifying the default, which if not rectified within 30 (thirty) days from the date of its receipt by the Allottee, application of the Allottee shall be treated as cancelled and all sums deposited by the Allottee in connection therewith including the booking amount shall be returned to the Allottee without any interest or compensation whatsoever.

24. Entire Agreement:

24.1. This Agreement, along with its schedules, constitutes the entire Agreement between the Parties with respect to the subject matter hereof and supersedes any and all understandings, any other agreements, allotment letter, correspondences, arrangements whether written or oral, if any, between the Parties in regard to the Apartment.

25. Right to Amend:

25.1. This Agreement may only be amended through written consent of the Parties.

26. PROVISIONS OF THIS AGREEMENT APPLICABLE ON ALLOTTEE OR SUBSEQUENT ALLOTTEES:

26.1. It is clearly understood and so agreed by and between the Parties hereto that all the provisions contained herein and the obligations arising hereunder in respect of the Apartment and the Project shall equally be applicable to and enforceable against and by any subsequent Allottees of the Apartment, in case of a transfer, as the said obligations go along with the Apartment for all intents and purposes.

27. Waiver not a limitation to enforce:

27.1. The Promoters may, at their sole option and discretion, without prejudice to their rights as set out in this Agreement, waive the breach by the Allottee in not making payments as per the Payment Plan including waiving the payment of interest for delayed payment. It is made clear and so agreed by the Allottee that exercise of discretion by the Promoters in the case of one allottee shall not be construed to be a precedent and /or binding on the Promoters to exercise such discretion in the case of other allottees.

27.2. Failure on the part of the Parties to enforce at any time or for any period of time the provisions hereof shall not be construed to be a waiver of any provisions or of the right thereafter to enforce each and every provision.

28. Severability:

28.1. If any provision of this Agreement shall be determined to be void or unenforceable under the Act or the Rules and Regulations made there under or under other applicable laws, such provisions of the Agreement shall be deemed amended or deleted in so far as reasonably inconsistent with the purpose of this Agreement

and to the extent necessary to conform to Act or the Rules and Regulations made there under or the applicable law, as the case may be, and the remaining provisions of this Agreement shall remain valid and enforceable as applicable at the time of execution of this Agreement.

29. Method of calculation of proportionate share wherever referred to in the Agreement:

29.1. Wherever in this Agreement it is stipulated that the Allottee has to make any payment, in common with other allottee(s) in the Project, the same shall be the proportion which the Carpet Area of the Apartment bears to the total Carpet Area of all the apartments in the Project.

30. Further Assurances:

30.1. Both Parties agree that they shall execute, acknowledge and deliver to the other such instruments and take such other actions, in additions to the instruments and actions specifically provided for herein, as may be reasonably required in order to effectuate the provisions of this Agreement or of any transaction contemplated herein or to confirm or perfect any right to be created or transferred hereunder or pursuant to any such transaction.

31. Place of Execution:

31.1. The execution of this Agreement shall be complete only upon its execution by the Promoter through its authorized signatory at the Promoter No. 2's Office, or at some other place, which may be mutually agreed between the Promoters and the Allottee, in Bengaluru after the Agreement is duly executed by the Allottee and the Promoters or simultaneously with the execution the said Agreement shall be registered at the office of the Sub-Registrar Shivajinagar, Bengaluru. Hence this Agreement shall be deemed to have been executed at Bengaluru.

32. Notices:

32.1. That all notices to be served on the Allottee and the Promoters as contemplated by this Agreement shall be deemed to have been duly served if sent to the Allottee or the Promoter by Registered Post at their respective addresses specified in the beginning of this Agreement.

32.2. It shall be the duty of the Allottee and the Promoters to inform each other of any change in address subsequent to the execution of this Agreement in the above address by registered post failing which all communications and letters posted at the above address shall be deemed to have been received by the Promoter or the Allottee, as the case may be.

33. Joint Allottees:

33.1. That in case there are Joint Allottees all communications shall be sent by the Promoters to the Allottee whose name appears first and at the address given by him/her which shall for all intents and purposes to consider as properly served on all the Allottees.

34. Savings:

34.1. Any application letter, allotment letter, agreement, or any other document signed by the Allottee, in respect of the Apartment, prior to the execution and registration of this Agreement shall not be construed to limit the rights and interests of the Allottee under the Agreement or under the Act or the rules or the regulations made there under.

35. Governing Law:

35.1. That the rights and obligations of the Parties under or arising out of this Agreement shall be construed and enforced in accordance with the Act and the Rules and Regulations made there under including other applicable laws of India for the time being in force.

36. Dispute Resolution:

36.1. All or any disputes arising out or touching upon or in relation to the terms and conditions of this Agreement, including the interpretation and validity of the terms thereof and the respective rights and obligations of the Parties, shall be settled amicably by mutual discussion, failing which the same shall be settled through the adjudicating officer appointed under the Act.

In witness whereof, the Parties hereinabove named have set their respective hands and signed this Agreement at Bengaluru in the presence of attesting witness, signing as such on the day first above written.

SIGNED AND DELIVERED BY THE WITHIN NAMED

Allottee (including joint buyers)

Please affix photograph and sign across the

(1) Signature _____

Name _____

Address _____

(2) Signature _____

Name _____

Address _____

Please affix photograph and sign across the

SIGNED AND DELIVERED BY THE WITHIN NAMED:

Promoter (Authorized signatory)

(1) Signature _____

Name _____

Address _____

2) signature _____

Name _____

Address _____

at Bengaluru in the presence of attesting witness:

1. Signature _____

   Name _____

   Address _____

2. Signature _____

   Name _____

   Address _____

Schedule – 'A'

(Description of the Apartment agreed to be sold under this Agreement and proportionate undivided share to be conveyed to the Owner's Association)

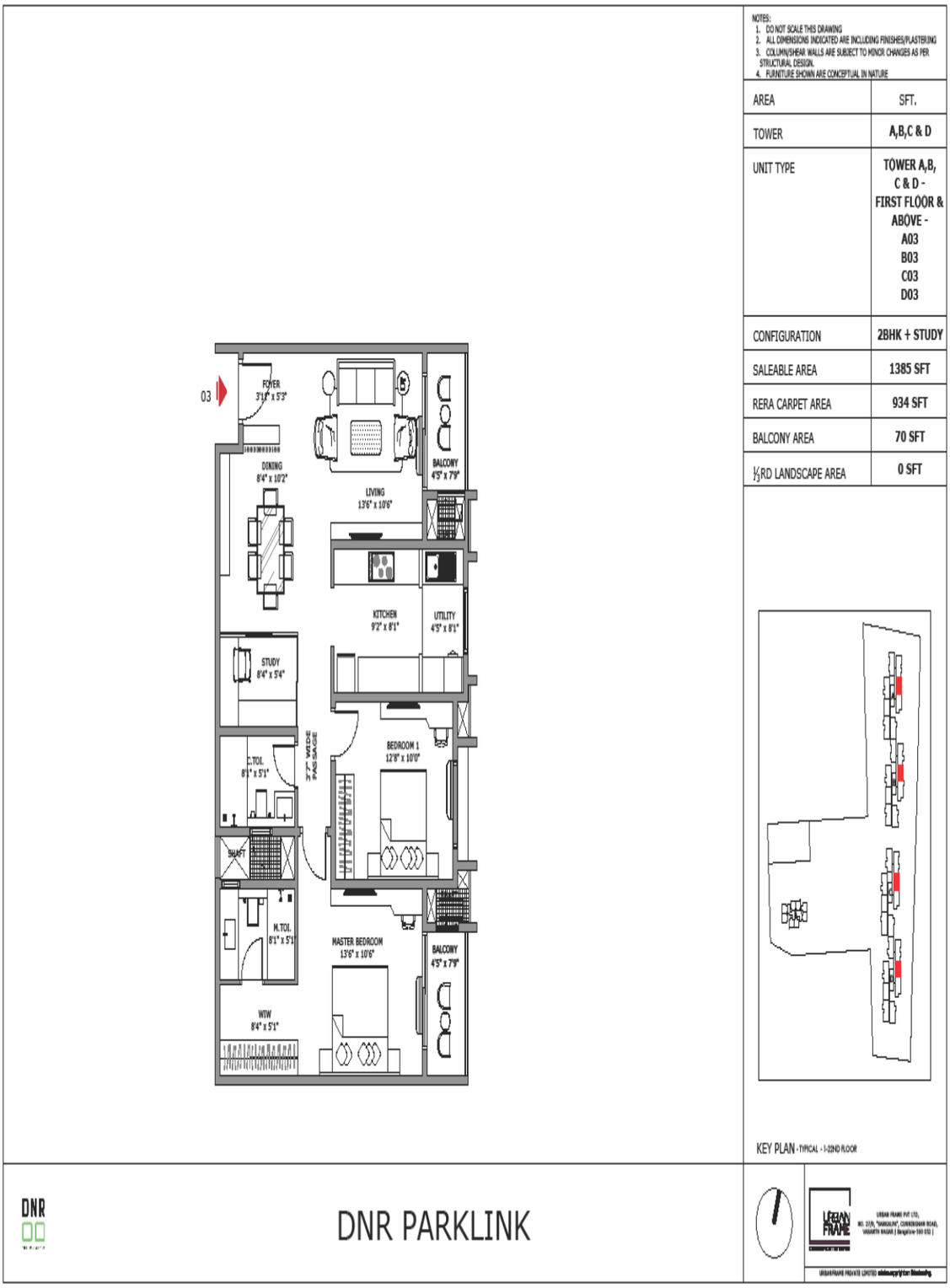
I. All that Residential Apartment bearing No. **B-603** on the **6th Floor** of **Block "B"-** of "**DNR PARKLINK-PHASE-1**" being built on the Schedule 'F' Property, apartment measuring **1385 Square Feet of super built-up area** and also having a **Carpet Area as per RERA measuring 934 Square Feet, and Balcony Area measuring 70 Square Feet**, along with **ONE Covered Car Parking Space**/s in the basement and the Apartment is bounded on the:

East by	:	Open to Sky
West by	:	Corridor
North by	:	B-602 Flat
South by	:	B-604 Flat

II. Proportionate undivided share, right, title, interest and ownership in the Schedule `F' Property which shall be in proportion to the super built-up area of the Apartment and which will be finally indicated in the Deed of Declaration and the Sale Deed.

Schedule – 'B'

(Floor Plan of the Apartment)



Schedule – 'C'

(Payment Plan)

20 days from the date of Booking	10%	10,56,590
Completion of Ground Floor Slab	5%	5,28,295
Completion of first Floor Slab	5%	5,28,295
Completion of 3rd Floor Slab	5%	5,28,295
Completion of 5th Floor Slab	5%	5,28,295
Completion of 7th Floor Slab	5%	5,28,295
Completion of 9th Floor Slab	5%	5,28,295
Completion of 11th Floor Slab	5%	5,28,295
Completion of 13th Floor Slab	5%	5,28,295
Completion of 14th Floor Slab	5%	5,28,295
Completion of 16th Floor Slab	5%	5,28,295
Completion of 18th Floor Slab	5%	5,28,295
Completion of 20th Floor Slab	5%	5,28,295
Completion of Final Floor Slab	5%	5,28,295
Completion of Block work	5%	5,28,295
Completion of Internal and External Plastering	5%	5,28,295
Possession	5%	5,28,295
TOTAL	**90%**	**95,09,310**

Schedule – 'D'
(Specifications of the Project)

Structure

- Seismic Resistant RCC Framed Structure.

Lobby

- Elegant Ground Floor lobby with flooring and cladding in Granite/Marble
- Combination of Vitrified tiles & Granite for upper floors lobbies and for cladding.
- All internal Lobby walls partially in texture paint and ceilings in OBD.

Foyer, Living and Dining

- Larger Format Size Premium Quality Vitrified Tiled Flooring.

Master Bed Room

- Premium Laminated Wooden Flooring.

Other Bed rooms

- Premium Quality Vitrified Tiled Flooring.

Kitchen

- Premium Vitrified Tiled Flooring.
- Ceramic Tiled Flooring and Tile Dado in the Utility.

Utility

- Granite counter with Single Bowl Steel Sink with drain board.

Toilets

- Designer/Rustic Premium Quality Tiles for Flooring and Walls.
- Granite Counters with Ceramic Wash Basin in all the Toilets.
- EWCs and Chrome plated fittings.
- Grohe / Kohler or equivalent Single Lever Tap and Shower Mixer.
- Provision for Geysers in all toilets.
- Grid False Ceiling.

Doors

- Main Door –Veneer finish door on both surfaces with Hard Wood frame.
- Other Internal Doors – Polish finished flush doors with Hard Wood frame.

External Doors and Windows

- UPVC / Anodized Aluminium Frames and Sliding Shutters for all External Doors.
- 3 track UPVC/Iodized Aluminium Framed Windows with Clear Glass and Mosquito Mesh Shutters.
- MS Designer Grill, Enamel Painted for Ground Floor Apartments only.

Painting

- Exterior Paint on External Walls.
- Internal Emulsion Paint /Tractor Emulsion Paint on Internal Walls and Ceilings.
- Enamel Paint on all Railings.

Electrical

- Concealed electrical wiring with PVC isolated copper wires (Havells/Polycab or equivalent) with modular switches.
- Sufficient power outlets and light points provided.
- 3 KW power will be provided for 1 BHK
- 5 KW power will be provided for 2 BHK
- 5 KW power will be provided for 2.5 BHK
- 6 KW power will be provided for 3 BHK
- TV/Data points will be provided in Bedroom & Living area and Telephone points will be provided in Living Area.
- Provision to install split AC in Living Area and in Bedrooms.
- ELCB/RCCB and individual meters will be provided for all Apartments.

Security System

- Security Cabinets at all Entrances and Exits, with CCTV coverage.

DG Power

- Power backup will be provided for all Common area/ services and Lighting for every flat. DG backup for flats would be as per below table
- 0.5 KW DG backup power will be provided for 1 BHK
- 1.0 KW DG backup power will be provided for 2 BHK
- 1.0 KW DG backup power will be provided for 2.5 BHK
- 1.5 KW DG backup power will be provided for 3 BHK

Fire

- External Fire Hydrants & Sprinklers as per Fire Norms.

Schedule – 'E'

(Specifications of the Development)

List of common amenities

Amenities:

- Swimming pool.
- Kids pool.
- Steam for men and women with changing rooms.
- Jacuzzi.
- Snooker.
- Foosball
- Yoga room
- Squash Court.
- Fully functional gym.
- Multi Indoor Games Room Table Tennis/ Chess/ Carom.
- Multipurpose hall for social gatherings.
- Kids Play Zone.
- Security Cabinets at all Entrances and Exits, with CCTV coverage.
- Lawn Tennis Court, Badminton Court, Basketball court, Mini soccer, Cricket Pitch.
- Seating Alcove.

Schedule – 'F'

(Description of the Entire Property)

Item No. 1:

All that piece and parcel of residentially converted undeveloped lands bearing BBMP Khatha Serial No. 1 Survey No. 129 & 130, earlier bearing Survey No. 129 and Survey No. 130, (converted vide Official Memorandum in No. ALN(E)(B)SR:5/09-10, dated 29/05/2009 issued by the Special Deputy Commissioner, Bengaluru District,) situated at Byrathi Village, Bidarahalli Hobli, Bengaluru East Taluk, measuring in total 13,700.95 square meters or 1,47,477 square feet or thereabouts within the boundaries mentioned here below and is bounded on the:

East by : Property bearing Survey No. 103,

West by : Road,

North by : Property bearing Survey No. 128; and

South by : Property bearing Survey No. 131.

Item No. 2:

All that piece and parcel of residentially converted undeveloped lands bearing E-Khatha No.150200400200820351, earlier bearing i) Survey No. 103/1, measuring 2 acres, (converted vide Official Memorandum in No. ALN(EBB)SR:139/2015-16, and rectified vide Official Memorandum bearing No.ALN(EBB)CR/09/20-21(139/15-16 dated 05-03-2021) ii) Survey 103/2, measuring 2 acres (converted vide official Memorandum bearing No.ALN(EBB)SR:138/2015-16 DATED 20-07-2016, duly rectified vide Official Memorandum No. ANL(EBB)CR/08/20-21(138/15-16), dated 05-03-2021 iii) and Survey No. 103/3, measuring 1 acre 23 guntas (converted vide Official Memorandum in No. ALN(EBB)SR:140/2015-16 and rectified vide Official Memorandum No. ALN(EBB)CR/10/20-21 (140/15-16) dated 20-07-2021 issued by the Deputy Commissioner, Bengaluru District,) situated at Chikkagubbi Village, Bidarahalli Hobli, Bengaluru East Taluk, measuring in total 5 acres 23 guntas or 2,42,847 square feet or thereabouts within the boundaries mentioned here below and is bounded on the:

East by : Property bearing Survey No. 100 & 102,

West by : Byrathi Village Boundary,

North by : Property bearing Survey No. 99; and

South by : Property bearing Survey No. 104 & followed by Road.

Schedule 'G'

(The Rights and Obligations of the Allottee)

I Rights of the Allottee:

The Allottee shall have the following rights with respect to the Apartment:

1. The right and liberty to the Allottee and all persons entitled, authorized or permitted by the Promoter (in common with all other persons entitled, permitted or authorized to a similar right) at all times, and for all purposes, to use the internal roads, passages and common areas in the Project for ingress and egress and use in common.

2. The right to free and uninterrupted passage of water, gas, electricity, sewerage, etc., to the Apartment through the pipes, wires, sewer lines, drain and water courses, cables, pipes and wires which are or may at any time hereafter be, in, under or passing through the Land.

3. Right to lay cables or wires for Radio, Television, Telephone and such other installations, through in any part of the Building, however, recognizing and reciprocating such rights of the owners of other apartments.

4. Right of entry and passage for the Allottee with/without workmen to other parts of the Building at all reasonable times for the purpose of repairing, cleaning, maintaining or removing the sewer, drains and water courses, cables, pipes and wires causing as little disturbance as possible to the other apartment owners and making good any damage caused.

5. Right to use along with other owners of the Project all the common facilities provided therein on payment of such sums as may be prescribed from time to time by the Promoter or the Maintenance Agency or the Association of Allottees.

6. Right to use and enjoy the common roads, common areas and parks and open spaces and common facilities in the Project in accordance with the purpose for which they are provided without endangering or encroaching the lawful rights of other owners/users.

7. Right to make use of all the common roads and passages provided in the Schedule 'A' Property without causing any obstruction for free movement therein.

II Obligations of the Allottee:

1. The Allottee acknowledges that the enjoyment of all or any of his/her easement rights are subject to the corresponding rights of the other occupants of other apartments and shall give the other co-owners all necessary support, vertical, horizontal and lateral etc. The supporting common walls of the Building shall be maintained and repaired in common by the Allottee with the owners and occupiers of the other apartments. None of the apartment owners shall place any obstructions or store or keep any articles in the Building Common Areas.

2. The Allottee shall indemnify the Promoters against all risks, costs and damages that the Promoter may be put to, vis-à-vis the construction of the Apartment or any part thereof on account of act on the part of the Allottee /s or his/her/their agents violating all or any of the terms of this Agreement.

3. The Allottee admits and acknowledges that the Promoters or its nominee/s or assignee/s reserves the right to display any hoardings, signboards, advertisements, in the Common Areas including club house, common entrance lobbies, main entrance to the Project, all frontages all internal, attached and external roads, lifts, installation of solar panels, communication and telecom towers on the building terraces within the Project, and nobody shall be allowed to obstruct the vision of such signboards / display.

4. The Allottee undertakes that the Building and the Common Areas and amenities shall be used in a responsible manner and shall not be used or permitted to be used for any purposes other than the purposes for which the same are intended and in accordance with the rules and regulations which shall be framed in this regard by the Promoter.

5. The Allottee undertakes not to commit any nuisance or do anything which may cause disturbance or annoyance to the owners/occupants of the Project.

6. The Allottee recognizes and acknowledges that the Common Areas and amenities including internal roads, car parking space for visitors, club house, landscapes of Project except the Building Common Area, shall be used by all occupants/residents of the Project (Phase-1 & Phase-2) on the Said Land. The residents/occupants are entitled to use the Common Areas and amenities available in the Project. The Allottee recognizes that the Promoter shall carry out inspections, repairs and maintenance through its agents in the Building/Common Areas and amenities and the Allottee shall not object/obstruct/hinder the right of way or such activities by the Promoter or its agents during the balance development of the Said Land. The Promoter shall also have right to access to the Apartment and /or adjoining apartments, to repair/rectify leakage/seepage, of any nature.

7. The Allottee agrees that the above terms and conditions shall be deemed as covenants, terms and conditions accepted and agreed between all the co-owners jointly and are enforceable by every co-owner against any other co-owner and the said covenants, terms and conditions shall run with the premises hereby agreed to be constructed (the Apartment).

8. The Allottee agrees, confirms and declares that the Promoter is authorized to sign, execute any application/undertaking and other papers, which may be required by any authority, such as BDA, BESCOM, KPTCL, BWSSB, KSPCB, MoEF, BBMP, Central Ground Water Development Authority, Airports Authority of India, Air Force, Indian Railways, National Highways and other Government/Local bodies/Authority of the State or Central Government for any reasons and or for any public service facilities like water, sewage or electricity, easementary rights over civic amenities and parks and open spaces for public or any requirement for the development of the Project and its benefit.

9. The Allottee agrees that he/she/it shall abide by any order/circular/notification issued by any competent/appropriate authority, to provide uninterrupted access to the general public to the adjacent properties through the roads/ parks & open spaces/ Civic Amenity Spaces set aside. The Allottee agrees to abide by all the undertakings/ conditions/Agreements made by the Promoter with the Authorities/Service Providers relating to the Project.

10. The Allottee shall also observe and abide by all Rules, Regulations, Bye-laws, Acts, etc., prescribed by the State/Central Government, Planning Authority, Local Body, or any Authority in regard to ownership or enjoyment of the Apartment and pay all taxes, levies, cess, betterment charges, etc. whether applicable now or in suspension due to any judicial process or those that may be introduced in future.

11. The Allottee shall adhere to all safety measures/norms instructed and prescribed by the Promoter during visits to the Project site at all reasonable times for inspecting the works carried out without causing hindrance/disturbance/ obstruction to the development. The Promoter will not be liable for accidents, if any, caused during such inspection on account of Allottee failing to adhere to any of the safety norms prescribed by the Promoter.

12. The Promoters shall be entitled to the option of undertaking maintenance and up-keep (by itself or through third party specialized in facility Management) of all the phase/ cluster/ Project for the period maximum upto 4 (four) years from the date of completion of one year after obtaining occupancy certificate for the Project –Phase 1; provided always that from the second year onwards such maintenance shall be done under supervision and direction of a governing body comprising of the members of the Association of Allottees and the Promoter; provided further that till end of four years option period, the Promoter shall always have a control over and majority in such governing body.

13. The lump sum corpus fund ("Corpus Fund") of ₹40/- per sq. ft. (Rupees Forty Only) per sq. ft. of the Saleable Area or as charged to all the apartment owners in proportion to the saleable area of the Apartment, shall be paid at the time specified in the Payment Plan annexed herewith or on demand whichever is earlier, to the Promoter or its nominee. The

said Corpus Fund will be retained by the Promoters and the interest earned thereon will be utilized for meeting the expenses of major assets and capital expenses of the Common Areas and facilities, its repairs etc., by the nominee of the Promoter. In case the interest accrued is, in the opinion of the Promoter or its nominee inadequate/insufficient to meet maintenance/capital expenses of the Project post completion, the Promoter or its nominee shall call for additional deposit and the Allottee shall pay the same immediately without any delay within fifteen (15) days of such demand.

14. Maintenance will be done by the Promoters for a period of one year from the date of completion and thereafter the maintenance shall be handed over to the Owners' Association.

15. Prior to the handing over of possession of the Apartment to the Allottee, the Allottee shall be obligated to pay to the Promoter or its nominee an amount of ₹5/- (Rupees Five Only) per sq. ft., equivalent to 12 (twelve) months' estimated maintenance, towards advance maintenance charges (the "Advance Maintenance Charges"). Once the Advance Maintenance Charges have been adjusted by the Promoter or its nominee towards the applicable maintenance charges, the Promoters or its nominee shall intimate the Allottee the quantum and the date of commencement for payment of the periodic maintenance charges which shall be final and binding on the Allottee and shall be promptly paid as and when called upon by the Promoter or its nominee. However, any delay in the payment of periodic maintenance charges shall attract interest at the rate of eighteen percent (18%) per annum, calculated from the date on which such amount became due, till the date of actual payment thereof. In addition to this, any delay in the payment of periodic maintenance charges beyond a period of thirty (30) days will entitle the Promoter or its nominee to deny access to the lifts, car park circulation area, club house back up electricity and its facilities provided in the Project, which facilities are annexed hereto, to the defaulting party till such time the dues are paid along with applicable interest. This is without prejudice to any other remedies and recourse that may be available to the Promoter or its nominee under applicable law. The maintenance shall mean and include the maintenance of the Building and Common Areas in the Project.

16. Apart from club subscription charges, the Allottee may be required to pay additional administrative charges to third party service provider for administering Reticulated Gas System, Communication Cabling System for Access Control, Surveillance, Dish TV, Telephone, Data and Mail Management.

17. The Allottee recognizes that a project of this size with the kind of amenities shall be maintained effectively, only if the maintenance is taken care by the Association of Owners. In acknowledgement, the Allottee agrees and undertakes to be part of formation of the Association of Owners in the name together with other allottee/s of the Project as and when called for by the Promoter. The Allottee shall not form any rival association/society, however members of the Association of the Owners shall have the right to choose the office bearers and/or the governing body of the Association of the Owners as per statutory regulations, rules, by-laws of the Association of the Owners and shall agree to be governed by bye-laws, rules and regulations of the Association of the Owners without any protest/demur.

18. The Allottee acknowledges that the amenities provided require timely and efficient maintenance system which involves constant monetary expenses, as part of the community living. The Allottee is responsible to share the maintenance cost proportionately with the other occupants of the Project to be developed on the Said Land, from the Possession Date.

19. Not to raise any construction in addition to that mentioned in the Schedule 'A' above.

20. Not to use the space left open after construction in the Said Land or in the Project in any manner which might cause hindrance to or obstruct the free movement of vehicles parked in the parking spaces or for users of adjoining properties.

21. No owner including Allottee can get exempted from liability for contribution towards common expenses by waiver of the use or enjoyment of any common areas and facilities

in the Project.

22. The Allottee in the event of leasing the Apartment shall keep informed the Promoter or the Maintenance Agency or the Association of Allottees as the case may be, about the tenancy of the Apartment and giving all the details of the tenants and occupants. Notwithstanding the leasing, the primary responsibility to adhere to all the rights and obligations of the Allottee contained in this Agreement shall be that of the Allottee and it shall be the responsibility of the Allottee to ensure that the tenant/lessee follows all the rules and regulations that may be prescribed for the occupants of the buildings in the Project.

23. The Allottee shall from the date of handing over possession, maintain the Apartment at his/her cost in a good condition and shall not do or suffer to be done anything in or to the said Apartment and/or the Common Areas, which may be against the rules and bye-laws of any statutory authority. The Allottee shall keep the Apartment walls, roof, drains, pipes and appurtenances thereto belonging in good condition and shall not do any work which jeopardizes the soundness or safety of the Building or the property or reduce the value thereof or impair any easement or hereditament and shall not add any structure or excavate any basement or cellar.

Restrictions

1. The Allottee shall use the Apartment for residential purpose and no other purposes or no trade or any business shall be carried on in the Apartment. The Apartment shall not be converted to Service Apartments or Guest House for any Corporate or be used for any other commercial purposes.

2. The Allottee acknowledges that he/she/they shall not have the enjoyment right and interest on the roof or the terrace of the block/tower/wing. The Promoter and/or its agents/ associates/nominees shall be entitled to access and use of the Terrace/ Roof Areas for the purpose of carrying out operations & maintenance activities. In case of any leakage/seepage, the Promoter shall have right to access the Apartment, by giving prior notice to the Allottee, to repair/rectify the leakage/seepage issues.

3. The Allottee shall not create obstructions/hindrances of any kind ever, to the Promoter to carry out the balance development/construction of the buildings/ blocks/towers/wings, on the Said Land by utilizing full potential, in all respects, in a phased manner, till the completion of entire development of the Said Land and shall not object the use of roads, driveways, conduits, cables, etc., by the Promoter during construction of balance portions of the Project.

4. In recognition of the Promoters having paid/being liable to pay a security deposit to the concerned authorities to build the Project as per plans and being liable to forfeiture of such deposits in the event any alteration/modification is carried out in the Apartment , without prior authorization, and in order to maintain the harmony of the Project, design and colour scheme, the Allottee shall not, individually or jointly, do, cause or permit to be done any structural alteration including putting /installing name board, advertisements, Cable TV Dish, Clothes drying Mechanisms, and/or air conditioners/split units, extending cables/ conduits/ exhaust pipes, Balcony Enclosures, grills or any other means or the exterior of the said Building shall not be changed in any manner or any structure whatsoever whether permanent or temporary or do any act/s diminishing the aesthetic value of the Building/Apartment, and or in the space not allocated (if any) for the purpose; In default whereof, the Allottee (individually or collectively with owners of the other apartments) shall be liable to the Promoter/concerned authorities , for the value of the security deposit and for all claims, costs, consequences, loss expenses, depletion in value or damage suffered by the Promoter, as the case may be.

5. The Allottee shall not have the right to fix any equipment, machinery, electronic, magnetic or electrical equipment including antennas, dish, etc., in the terrace or in the Building/Township common area, except in the area earmarked for the same.

6. The Allottee shall not dispose or throw garbage/rubbish/waste/used items in the building/Township Common Areas, open areas, roads, car parks, parks, ducts, etc., and shall strictly follow the rules and regulations for garbage segregation at source and disposal as prescribed by the Promoter. The Allottee will ensure pets are confined within the Apartment/designated area and ensure that the pets do not cause nuisance/disturbance to other occupants in the Project.

7. The Allottee shall while carrying on any interior/refurbishing work within the Apartment, not cause any nuisance/annoyance to the other occupants of the other apartments, nor shall damage/alter alignment/route of water services, sewer lines, water proofing of the toilets, balcony, or any other services and shall not use the Building/Common Areas, roads, open spaces in the Said Land for storing or dumping materials/debris, etc. The Allottee shall strictly observe all the rules, regulations and restrictions that may be generally/specifically imposed/prescribed by the Promoter and/or the Association of Owners for carrying on the interior decoration/maintenance work in Apartment. The Promoter and/or the Association of Owners shall have right to inspect the Apartment regarding execution of such interior works and adherence by the Allottee of all the rules, by giving reasonable notice to such Allottee.

8. The Allottee/s shall not be entitled to seek partition of his/her/their undivided share of land, by metes and bounds, in as much as the right to UDS shall be enjoyed by the Allottee/s along with the other apartment owners who are also entitled to the UDS applicable to their respective apartments.

9. The Allottee shall have no claim in the Project save and except in respect of the Apartment hereby agreed to be constructed for him/her/them/it as well as the right to use Amenities in the manner set out in this Agreement. There would be multiple blocks/towers/wings with its Cluster/Phase Common Area. The Allottee shall enjoy the Cluster/Phase Common Area in their respective Block/Tower/Wing and shall not be entitled to any exclusive usage/enjoyment of common areas, Parking spaces, etc. in other buildings/towers.

10. The Allottee or anyone claiming through the Allottee shall not park his /her vehicle/s in the Building/Township Common Areas other than the Car Parking Space/s allotted to such Allottee. The Allottee further covenants and undertakes that he/she/it shall use the Car Parking Space/s, if any allotted, only for parking vehicle and shall not convert it to any other use nor shall put up or construct any wall or structure thereon. The Allottee shall not alter the parking spaces for any other use, in the event of any breach by the Allottee, the Promoter and/or the statutory authority shall have the right to restore it to the original state at the cost of the Allottee. It is clearly understood that the Car Park Space/s allotted and the car parked in the allotted slot by the Allottee shall be solely at the risk and cost of Allottee /tenant/resident and the Promoter shall not be responsible for any theft, damage, etc., to the car/vehicle, for any reason and Promoter shall be indemnified by the Allottee(s) for any claims, demands, etc., arising out there from. The Allottee shall abide by the access control and Car Parking Space usage regulations implemented, from time to time, by the Promoter/ Association/ Society.

11. The Allottee agrees not to obstruct or cause hindrances or raise any objections, at any time, to the Promoter rights to develop/use the Township Common Area and Amenities and the Promoter shall have unfettered right and shall be free to carry out such construction commercial/residential/or as may be deemed fit by the Promoter, including inter alia buildings/amenities/infrastructure facilities in phase manner, subject to necessary statutory sanctions/approvals as may be required, from time to time.

12. The Allottee/s shall not be entitled to transfer or assign his/her rights in this Agreement to any third party, till the payment of the entire Consideration and the handover of possession of the Apartment and upon obtaining a written consent from the Promoter and/or the Association of Owners/apex body/ society of the Allottees, to be formed. The Allottee shall not have the right, in any way, to sell, assign or transfer the interest under this Agreement, at any time before the handover of the Apartment or registration of the sale deed, whichever is later.